

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:
Date Purchased:

-----X
JULIAN DAY,

SUMMONS

Plaintiff(s),
-against-

Plaintiff designates New
York County as the place of
trial.

THE CITY OF NEW YORK AND P.O. IAN RULE, P.O.
CRAIG SIKORSKI AND P.O. JOSEPH TENNARIELLO,

The basis of venue is:
Plaintiff's Residence

Defendant(s).
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To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
December 21, 2017


Robert J. Renna, Esq.
ROBERT J. RENNA, P.C.
Attorneys for Plaintiff(s)
JULIAN DAY
26 Court Street, Suite 303
Brooklyn, NY 11242
(718) 422-1003
File No.: 17-024

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

P.O. IAN RULE
c/o NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, NY 10007

P.O. CRAIG SIKORSKI
c/o NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, NY 10007

P.O. JOSEPH TENNARIELLO
c/o NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

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JULIAN DAY,

VERIFIED COMPLAINT

Plaintiff(s),

-against-

THE CITY OF NEW YORK AND P.O. IAN RULE, P.O.
CRAIG SIKORSKI AND P.O. JOSEPH TENNARIELLO,

Defendant(s).

-----X

Plaintiff, by his attorneys, ROBERT J. RENNA, P.C., complaining of the Defendants, respectfully alleges, upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at the time of the commencement of this action, plaintiff JULIAN DAY, was and still is a resident of the County of New York, City and State of New York.
2. That the cause of action alleged herein arose in the County, City and State of New York.
3. That at all times herein mentioned, defendant THE CITY OF NEW YORK was and is a municipal corporation, organized and existing under and by virtue of the laws of the State of New York.
4. That at all times herein mentioned, defendant THE CITY OF NEW YORK, maintained a police department that was under the control and direction of the defendant, THE CITY OF NEW YORK.
5. That at all times herein mentioned, defendant THE CITY OF NEW YORK operated, managed, maintained, and controlled the NEW YORK CITY POLICE DEPARTMENT.
6. That prior to the commencement of this action Plaintiff duly served and filed a Notice of Claim against the Defendants and that such notice of claim and intention to sue was presented, and THE CITY OF NEW YORK has neglected and for refused to make adjustment or payment

thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

7. That at all times herein mentioned, Defendants P.O. IAN RULE, P.O. CRAIG SIKORSKI AND P.O. JOSEPH TENNARIELLO were and are employed by THE CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT.

8. That at all times herein mentioned, Defendants P.O. IAN RULE, P.O. CRAIG SIKORSKI AND P.O. JOSEPH TENNARIELLO were acting within the course and scope of their employment with THE CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT.

9. That at all times herein mentioned, Defendants P.O. IAN RULE, P.O. CRAIG SIKORSKI AND P.O. JOSEPH TENNARIELLO were acting under color of state law.

10. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules § 1602 with respect to joint and several liability.

AS AND FOR A SECOND CAUSE OF ACTION

11. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

12. That on February 13, 2016 at approximately 12:59 a.m., Plaintiff JULIAN DAY was lawfully in front of 144 West 4th Street, New York, NY 10012.

13. That on February 13, 2016, THE CITY OF NEW YORK by and through its agents, servants and/or employees, including P.O. IAN RULE, P.O. CRAIG SIKORSKI AND P.O. JOSEPH TENNARIELLO and other members of the NEW YORK CITY POLICE DEPARTMENT, assaulted and battered and used excessive and unreasonable force against plaintiff JULIAN DAY.

14. That on February 13, 2016, THE CITY OF NEW YORK by and through its agents, servants and/or employees, including P.O. IAN RULE, P.O. CRAIG SIKORSKI AND P.O. JOSEPH TENNARIELLO and other members of the NEW YORK CITY POLICE DEPARTMENT, acting

the court of their employment as police officers, and under color of law, and without legal cause of justification arrested the plaintiff, JULIAN DAY, causing plaintiff to be handcuffed and imprisoned and causing plaintiff to sustain serious permanent injuries.

15. The defendant, THE CITY OF NEW YORK, their agents, servants, and/or employees, while acting within the scope of their employment with defendant THE CITY OF NEW YORK, were negligent, reckless and careless in causing Plaintiff serious personal injuries.

16. By reason of the unprofessional and improper acts of defendant's agents, servants and/or employees, the plaintiff suffered mental shock, mental anguish and psychological trauma and was otherwise injured.

17. Plaintiff was arrested and incarcerated without cause or justification and without due process of law.

18. Plaintiff was forced to associate and mingle with persons accused of serious crimes, drug addicts and persons of low reputation, all against his will and without cause or justification, all of which caused the plaintiff shame and humiliation. Plaintiff was caused to be sick, unwell and was unlawfully denied his liberty and freedom.

AS AND FOR A THIRD CAUSE OF ACTION

19. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

20. That by reason of the aforesaid assault and battery and use of excessive and unreasonable force, plaintiff was deprived of his rights, privileges and immunities secured by the Constitution of the United States of America and of the State of New York, including his rights under the Fourth Amendment to be free from unreasonable searches and seizures, and their rights pursuant to 42 USC § 1983 by those, including P.O. IAN RULE, P.O. CRAIG SIKORSKI AND P.O. JOSEPH TENNARIELLO who under color of a statute or regulation of a state, caused plaintiff to be so deprived, thereby resulting in the aforementioned damages to plaintiff.

AS AND FOR A FOURTH CAUSE OF ACTION

21. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

22. That on February 13, 2016, in the County, City and State of New York, THE CITY OF NEW YORK, by and through its agents, servants and/or employees, including P.O. IAN RULE, P.O. CRAIG SIKORSKI AND P.O. JOSEPH TENNARIELLO and other members of the NEW YORK CITY POLICE DEPARTMENT, wrongfully and falsely arrested plaintiff and then caused plaintiff to wrongfully to be detained and imprisoned.

23. That the aforesaid arrest, detention, and imprisonment was caused by THE CITY OF NEW YORK, its agents servants and/or employees, including P.O. IAN RULE, P.O. CRAIG SIKORSKI AND P.O. JOSEPH TENNARIELLO, without a warrant and without any reasonable or probable cause or belief that plaintiff was in fact guilty of any crime.

24. That defendant, THE CITY OF NEW YORK, its agents, servants and/or employees, while acting in their official capacity as agents, servants and/or employees of defendant, THE CITY OF NEW YORK, and without any just or cause or provocation and under the color of their authority, brought the plaintiff to the police precinct and maliciously and fraudulently caused charges to be entered in the Courts against the plaintiff; said defendants knew said charges were totally false and untrue and said defendants made false and fraudulent charges and maliciously prosecuted the plaintiff to protect and conceal their own vicious criminal acts upon the plaintiff as heretofore alleged.

25. The charges against the plaintiff, JULIAN DAY was dismissed in Criminal Court, New York County.

26. That by reason of the false arrest, imprisonment and detention, plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his

necessary affairs and business, and was caused to suffer much pain in both mind and body, and to sustain economic loss and other damages.

AS AND FOR A FIFTH CAUSE OF ACTION

27. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

28. That by reason of the aforesaid false arrest and imprisonment, plaintiff was deprived of his rights, privileges and immunities secured by the Constitution of the United States of America and of the State of New York, including their right under the Fourth, Fifth and Fourteenth Amendment to be free from unreasonable searches and seizures and his rights pursuant to 42 USC § 1983 by those, including P.O. IAN RULE, P.O. CRAIG SIKORSKI AND P.O. JOSEPH TENNARIELLO, who under color of a statute or regulation of a state, caused plaintiffs to be so deprived, thereby resulting in the aforementioned damages.

AS AND FOR A SIXTH CAUSE OF ACTION

29. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

30. That the aforesaid assault and battery and false arrest and imprisonment perpetrated by P.O. IAN RULE, P.O. CRAIG SIKORSKI AND P.O. JOSEPH TENNARIELLO and the other involved police officers were the result of the negligence of THE CITY OF NEW YORK in its hiring, supervision, training, and retention of P.O. IAN RULE, P.O. CRAIG SIKORSKI AND P.O. JOSEPH TENNARIELLO and the other involved police officers.

AS AND FOR A SEVENTH CAUSE OF ACTION

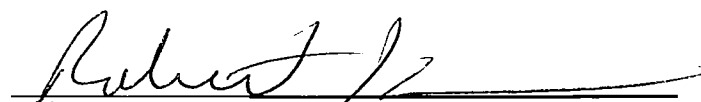
31. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

32. That THE CITY OF NEW YORK's hiring, supervision, training, and retention of P.O. IAN RULE, P.O. CRAIG SIKORSKI AND P.O. JOSEPH TENNARIELLO arose to the level of deliberate indifference to the consequences of its actions, and indifference to plaintiffs rights,

privileges and immunities secured by the Constitution of the United States of America and of the State of New York, and their rights pursuant to 42 USC § 1983.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the aforementioned causes of action, for compensatory damages in the sum of FIVE MILLION DOLLARS (\$5,000,000), and for punitive damages in an amount to be determined by the trier of fact, together with attorney's fees pursuant to 42 USC § 1988, and together with the costs and disbursements of this action.

Dated: Brooklyn, New York
December 21, 2017



Robert J. Renna, Esq.
ROBERT J. RENNA, P.C.
Attorneys for Plaintiff(s)
JULIAN DAY
26 Court Street, Suite 303
Brooklyn, NY 11242
(718) 422-1003
File No.: 17-024

VERIFICATION BY AFFIDAVIT

STATE OF NEW YORK,

SS:

COUNTY OF KINGS,

Julian Day

being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed

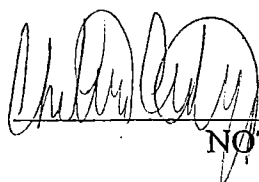
Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

Dated: BROOKLYN, NEW YORK

X  _____

Subscribed and sworn to before me

 _____

NOTARY PUBLIC

CHRISTINE COSTANZO
Notary Public, State of New York
No. 01CO6210768
Qualified in Kings County
Commission Expires August 31, 2021

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JULIAN DAY,

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-against-

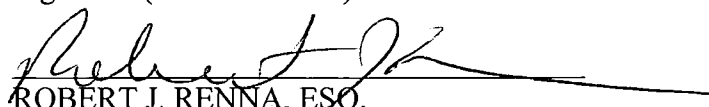
THE CITY OF NEW YORK AND P.O. IAN RULE, P.O. CRAIG SIKORSKI AND P.O.
JOSEPH TENNARIELLO,

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

Robert J. Renna, P.C.
Attorneys for Plaintiff(s)
26 Court Street Suite 303
Brooklyn, New York 11242
(718) 422-1003

Signature (Rule 130-1.1-a)


ROBERT J. RENNA, ESQ.